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IN THE DISTRICT COURT OF APPEAL
FOURTH DISTRICT, STATE OF FLORIDA

BLUE RIBBON CARE ASSISTED LIVING FACILITY and RENNAY ROSE,

Petitioners,

Case No. 4D2025-_____
L.T. Case No: 50-2023-CA-010345

v.

JAY BINGHAM, as GUARDIAN of THE PERSON of LUCILLE PADYKULA,

Respondent.
_____/

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**PETITION FOR WRIT OF CERTIORARI**

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## PETITION FOR WRIT OF CERTIORARI

Defendants/Petitioners, Blue Ribbon Care Assisted Living Facility LLC ("Blue Ribbon") and Rennay Rose ("Ms. Rose") (collectively, "Defendants"), petition the Court for a Writ of Certiorari quashing the Honorable Jaimie R. Goodman's (hereinafter, the "trial court") April 17, 2025 Order denying Defendants' request for summary judgment based on Plaintiff/Respondent Jay Bingham's admitted failure to serve a mandatory presuit notice of intent to initiate litigation within the two-year limitations period under sections 429.293 and 429.296, Florida Statutes. (A. 5-6.)

## BASIS FOR INVOKING JURISDICTION

A litigant's failure to comply with statutory presuit notice requirements satisfies the threshold jurisdictional inquiry for certiorari review. *See, e.g.*, *Citizens Prop. Ins. Corp. v. Walden*, 395 So. 3d 216, 217-18 (Fla. 3d DCA 2024) (orders on motions challenging party's failure to comply with presuit notice requirements are reviewable by certiorari); *Williams v. Oken*, 62 So. 3d 1129, 1137 (Fla. 2011) (Florida courts permit certiorari review to ensure the procedural aspects of the statutory presuit requirements have been

met); *Corbo v. Garcia*, 949 So. 2d 366, 368 (Fla. 2d DCA 2007) (non-final order erroneously allowing a plaintiff to proceed with an action without complying with presuit notice requirements satisfies jurisdictional requirements for certiorari review); *Hord v. Taibi*, 801 So. 2d 1011, 1012 (Fla. 4th DCA 2001) (granting certiorari based on plaintiff's failure to comply with presuit notice requirements); *Miami Physical Therapy Assoc., Inc. v. Savage*, 632 So. 2d 114, 116 (Fla. 3d DCA 1994) (granting certiorari based on plaintiff's failure to file statutory presuit notice within statute of limitations.); *Dial 4 Care, Inc. v. Brinson*, 319 So. 3d 111, 113 (Fla. 3d DCA 2021) (granting certiorari based on trial court's failure to make requisite findings regarding presuit requirements).

## STATEMENT OF THE CASE AND FACTS

The underlying action arises out of the death of Frank Padykula, a former resident of Blue Ribbon, in a July 9, 2022 motor vehicle accident. (A. 7-8.) Plaintiff filed the wrongful death action as "Guardian of the Person of Lucille Padykula" — the decedent's wife and Plaintiff's mother — on June 12, 2024. (A. 7-20.) Plaintiff admittedly failed to serve a presuit notice of intent to initiate litigation

as required under § 429.293(2), Florida Statutes, by July 9, 2024 — the expiration of the two-year limitations period under § 429.296(1). (A. 96-98.)

Defendants moved to dismiss the lawsuit for failure to comply with the Chapter 429 presuit requirements prior to the expiration of the statute of limitations (and also to quash service of process, which is not an issue in this proceeding). (A. 48-95.) Defendants limited their motion to dismiss to Plaintiff's failure to comply with the mandatory presuit requirements within the two-year statute of limitations — they did not raise Plaintiff's lack of standing to pursue the wrongful death action as Ms. Padykula's "Guardian" rather than as Mr. Padykula's "Personal Representative" (which they later raised on summary judgment). (*Id.*) Defendants argued that, because the applicable two-year statute of limitations under § 429.296(1) expired on July 9, 2024, Plaintiff's failure to serve a presuit notice before that date mandated dismissal of the action under §§ 429.293(2) and 429.296(1). (*Id.*) *See, e.g.*, *Cohen v. Autumn Village, Inc.*, 339 So. 3d 429, 433 (Fla. 1st DCA 2022) (affirming dismissal for failure to

comply with ALFA's presuit requirements within two-year statute of limitations).

Plaintiff responded with a Motion to Stay on August 23, 2024, arguing (without citation to authority) that the presuit notice requirements were "tolled" under section 95.051(1)(d), which tolls the statute of limitations for filing an "action" in the case of the "adjudicated incapacity" of the "person entitled to sue." (A. 96-98.) Plaintiff argued that the statute applied to excuse his admitted failure to timely serve a presuit notice under § 429.293(2) because he was pursuing the wrongful death action as Ms. Padykula's "guardian" who had been adjudicated incompetent as of the date of Mr. Padykula's death. (A. 97.) Plaintiff advised that he was "working to establish a plenary guardianship and a conservatorship" in Colorado where Ms. Padykula resides and had also "petitioned the probate court in Palm Beach County to be designated Personal Representative of Mr. Padykula's Estate" — after the expiration of the statute of limitations. (A. 97.)

Plaintiff concluded that he would be "able to satisfy all conditions precedent and amend [the] wrongful death action on his

mother's behalf" within the tolling period established by § 95.051 once he was appointed "plenary Guardian and/or Conservator" for his mother, and requested an order staying the litigation to allow him to "obtain an order from the Colorado court" securing that appointment. (A. 97.) Plaintiff subsequently served his first presuit notice of intent to initiate litigation on September 26, 2024, before his appointment as Ms. Padykula's guardian and over three-months after the expiration of the statute of limitations. (A. 96-106.)

Defendants responded in opposition to Plaintiff's request for a stay on November 5, 2024, pointing out that the "Order Determining Incapacity" was limited to Ms. Padykula's ability to make decisions regarding government benefits, her residence, medical treatment, and her social environment, but not her ability "to sue or be sued." (A. 107-110.) Defendants did not raise in their Motion to Dismiss or in their response to Plaintiff's Motion to Stay — but would later raise in their Motion for Summary Judgment — Plaintiff's lack of standing to sue as Ms. Padykula's "Guardian" rather than as Mr. Padykula's Personal Representative.

After considering the parties' filings, the trial court agreed with Plaintiff that the statute of limitations and presuit requirements were "tolled" under § 95.051(1)(d) in light of Ms. Padykula's "adjudicated incapacity," and therefore stayed the litigation "until such time as a plenary guardian and/or guardian with the right to file suit is appointed on behalf of the surviving spouse." (A. 111-12.) The trial court went on to deny Defendants' Motion to Dismiss as moot. (A. 113-114.)

After advising the trial court of his December 17, 2024 appointment as Ms. Padykula's Guardian, Plaintiff's attorney served a second presuit notice of intent under section 429.293, Florida Statutes, on January 10, 2024. (A. 115-131.) In its subsequent February 3, 2025 Case Management Order, the trial court agreed with Plaintiff that the action should be stayed until March 19, 2025, the end of the "new" presuit notice period commencing with the service of Plaintiff's second presuit notice on January 10, 2025. (A. 118.)

On February 6, 2025, Defendants filed a Motion for Order Immediately Lifting Stay on Litigation and requesting that the court

consider their contemporaneously filed Motion for Summary Judgment. (A. 120-139.) Defendants' summary judgment motion was based on Plaintiff's (i) lack of standing to pursue the wrongful death action as Ms. Padykula's Guardian rather than as the Personal Representative of Mr. Padykula's Estate, and (ii) failure and inability to comply with the presuit notice requirements of Chapter 429 as Personal Representative of the Estate within the two-year limitations period. (A. 21-32.) *See, e.g.*, § 429.29, Fla. Stat. ("action may be brought . . . by the personal representative of the estate of the deceased resident"); *Wagner, Vaughan, McLaughlin & Brennan, P.A. v. Kennedy Law Grp.*, 64 So. 3d 1187, 1191 (Fla. 2011) (personal representative is the only party with standing to bring wrongful death claim); *Kadlecik v. Haim*, 79 So. 3d 892, 893 (Fla. 5th DCA 2012) ("personal representative has the exclusive authority to conduct [wrongful death] litigation" and "survivors are not parties to the wrongful death litigation, even when the claims are brought for their benefit.").

Defendants argued that, because Plaintiff lacks standing to sue for wrongful death as Ms. Padykula's "Guardian," the January 10,

2025 presuit notice of intent was a legal nullity. (*Id.*) They further argued that the § 95.051(1)(d) tolling provision for filing an action purportedly applicable to Ms. Padykula's "adjudicated incapacity" did not apply to excuse the Estate's failure to serve a presuit notice of intent. (*Id.*) In this regard, Defendants argued that, even if Plaintiff were to request permission to substitute as a proper party Plaintiff in his capacity as Mr. Padykula's Personal Representative — which he had not yet done — the § 95.051(1)(d) tolling provision applicable to Ms. Padykula's "adjudicated incapacity" would not cure the Estate's failure to timely serve a presuit notice. (*Id.*) Defendants concluded that, because Plaintiff cannot take advantage of any "tolling" of the statute of limitations under § 95.051(1)(d) as he attempted to do on behalf of his mother, Defendants were entitled to final summary judgment in their favor as a matter of law based on Plaintiff's failure to timely comply with the § 429.293(2) presuit notice requirements. (*Id.*)

In response, Plaintiff did not deny that he failed to serve a presuit notice of intent within the two-year statute of limitations. (A. 33-47.) Nor did he deny that wrongful death actions must be brought

by the Personal Representative of the decedent's Estate within two years, and that he waited more than two-years after the accident and the expiration of the limitations period to petition the probate court to be designated Personal Representative of Mr. Padykula's Estate. (*Id.*) Plaintiff nevertheless asserted that the § 95.051(1)(d) tolling provision applicable to the "adjudicated incapacity" of the "person entitled to sue" the trial court had invoked on Ms. Padykula's behalf applied equally to excuse the Estate's admitted failure to timely serve a presuit notice of intent. (*Id.*) With no citation to authority (because none exists), Plaintiff argued that § 95.051(1)(d) tolls the statute of limitations not only for an "incapacitated person" to file a wrongful death action, but also for the "opening [of] an estate" and for service of a presuit notice of intent by the Estate. (*Id.*)

Plaintiff's rationale for extending the § 95.051(1)(d) tolling provision applicable to Ms. Padykula's "adjudicated incapacity" to the Estate was as follows: (i) Ms. Padykula was purportedly the "only person" with an "interest in" or an "obligation to" open an Estate (not true), (ii) Plaintiff was the "only person in Ms. Padykula's life who had the practical ability to open an Estate" (irrelevant), and (iii) Plaintiff

therefore "stood in [Ms. Padykula's] shoes" and was legally entitled to take advantage of the § 95.051(1)(d) tolling provision. (A. 39.) Plaintiff inconsistently conceded, however, that "he had the ability to open an Estate" within the two-year limitations period, but asserted he had "no obligation or legal interest in doing so." (A. 39.) *Cf. Coley v. Estate of Odom*, 500 So. 2d 188, 189 (Fla. 1st DCA 1986) (acknowledging sanction of dismissal when an estate is not opened within limitations period).

To summarize: Plaintiff concedes that the underlying wrongful lawsuit should have been brought by the Personal Representative of Mr. Padykula's Estate, and that he lacks standing to pursue the action as Ms. Padykula's "Guardian." He also concedes that a presuit notice of intent to initiate litigation was not served within the two-year limitations period. Finally, he concedes that he waited until after the two-year limitations period expired to petition for appointment as Mr. Padykula's Personal Representative and to open an Estate, even though he admits he had every "ability to open an estate" within the two-year limitations period. With no citation to authority, Plaintiff nevertheless argues that his failure to serve a presuit notice of intent

to litigate and to open an Estate within the two-year limitations period is excused by the tolling provision of § 95.051(1)(d) purportedly applicable to Ms. Padykula's "adjudicated incapacity."

The trial court accepted Plaintiff's argument and denied Defendants' Motion for Summary Judgment. (A. 5-6.) In its order, the trial court excused Plaintiff's admitted failure to timely comply with the mandatory § 429.293(3) presuit requirements by applying the § 95.051(1)(d) tolling provisions applicable to the "adjudicated incapacity" of a "person entitled to sue" to toll the time for the Estate's service of a presuit notice. (A. 5.) The trial court reached this result even though an Estate, by definition, is not a "person" who can be "adjudicated incapacitated," and even though Ms. Padykula was not the Personal Representative and therefore not the "person entitled to sue." The trial court instead reasoned that, because it had "previously held that Florida Statute § 95.051 tolls the statute of limitations with regard to a wrongful death claim brought on behalf of the surviving spouse, Lucille Padykula, based upon a prior adjudication of incapacity," this "same tolling provision applies to the Estate." (A. 5.) The trial court concluded that the "statute of

limitations [therefore] has not expired with regard to this claim." (A. 5.)

Defendants have petitioned for a Writ of Certiorari on the basis that the trial court's order, which excuses Plaintiff's admitted failure to timely comply with the mandatory presuit notice requirements of § 429.293(2), is a departure from the essential requirements of Florida law that creates irreparable harm which cannot be remedied on plenary appeal.

## NATURE OF RELIEF SOUGHT

Defendants respectfully request the entry of an order quashing the trial court's April 17, 2025 order applying the § 95.051 tolling provisions to excuse Plaintiff's admitted failure to timely comply with the mandatory presuit notice requirements of § 429.293(2), and requiring the trial court to enter judgment in Defendants' favor based on Plaintiff's failure and inability to timely serve a presuit notice of intent within the two-year limitations period.

## ARGUMENT

**THE TRIAL COURT DEPARTED FROM THE ESSENTIAL REQUIREMENTS OF FLORIDA LAW IN DETERMINING THAT THE ESTATE'S FAILURE TO TIMELY SERVE A MANDATORY PRESUIT NOTICE IS EXCUSED BY THE § 95.051(1)(d) TOLLING PROVISIONS APPLICABLE TO THE "ADJUDICATED INCAPACITY" OF THE "PERSON ENTITLED TO SUE."**

A petitioner seeking a writ of certiorari must establish (i) a departure from the essential requirements of the law, (ii) resulting in material injury for the remainder of the case, (iii) that cannot be corrected on post-judgment appeal. *See, e.g.*, *Citizens Prop.*, 395 So. 3d at 217. Florida law is well-settled that a litigant's failure to comply with statutory presuit procedures — as in this case — satisfies the threshold jurisdictional requirement for certiorari review. *Id.* at 217-18. Therefore, this petition will focus on the trial court's "departure from the essential requirements of the law" in determining that Plaintiff's admitted failure to timely comply with the mandatory presuit notice requirements of § 429.293(2) as Personal Representative of the Estate is excused by the tolling provisions of § 95.051(1)(d) for filing "actions" purportedly applicable to Ms. Padykula's "adjudicated incapacity."

### A. A Plaintiff Asserting A Claim Against An ALF Must Serve A Presuit Notice Of Intent Within The Two-Year Statute Of Limitations.

Under Florida's Assisted Living Facilities Act ("ALFA"), a "claimant alleging injury to or the death of a resident **shall** notify each prospective defendant by certified mail, return receipt requested, of an asserted violation of a resident's rights provided in section 429.28 or deviation from the standard of care." *See* § 429.293(2), Fla. Stat. The presuit "notification of a violation of a resident's rights or alleged negligence **shall** be served **within the applicable statute of limitations period**." *See* § 429.293(4), Fla. Stat. (emphasis added). The applicable statute of limitations for an action under the ALFA — as in this case — is "**two-years** from the time the incident giving rise to the action occurred or within two-years from the time the incident is discovered, or should have been discovered with the exercise of due diligence." *See* § 429.296(1), Fla. Stat.

The "incident giving rise to the action" occurred on July 9, 2022 — the date of the motor vehicle accident and Mr. Padykula's death. The two-year statute of limitations for filing a wrongful death action against Defendants, therefore, expired on **July 9, 2024**. Under

section 429.293(3), accordingly, a presuit notice was required to have been served within that limitations period, *i.e.*, **before** July 9, 2024. It was not.

### B. The § 95.015(1)(d) Tolling Provision Applicable To The "Adjudicated Incapacity" Of The "Person Entitled to Sue" Does Not Apply To An "Estate."

Plaintiff filed the underlying wrongful death action before the expiration of the statute of limitations, but admittedly did not serve a presuit notice of intent under section 429.293(4) before the expiration of the limitations period on July 9, 2024. Plaintiff also concedes he lacks standing to pursue this wrongful death action on Ms. Padykula's behalf as her "Guardian," and must instead pursue the action as Personal Representative of Mr. Padykula's Estate. Plaintiff nevertheless succeeded in convincing the trial court that the tolling provisions of § 95.051(1)(d) applicable to the "adjudicated incapacity" of the "person entitled to sue" excuse his admitted failure to serve a presuit notice of intent within the two-year limitations period, because he brought the lawsuit as the "Guardian" of Ms. Padykula who was adjudicated incompetent when Mr. Padykula died.

The trial court's order accepting Plaintiff's argument and denying summary judgment in Defendants favor is a clear departure from the essential requirements of Florida law. By definition, the § 95.051(1)(d) tolling provision for filing an "action" applicable to the "adjudicated incapacity" of the "person entitled to sue" cannot apply to an Estate. An "Estate" cannot be adjudicated incompetent, nor is it a "person" entitled to sue. The trial court's determination that the § 95.051(1)(d) tolling provision applies "to the Estate" to excuse Plaintiff's admitted failure to timely comply with mandatory presuit notice requirements is contrary to the plain language of the statute and a departure from the essential requirements of Florida law.

"The Legislature has adopted a comprehensive statutory framework to govern limitations periods, including provisions that address when those periods . . . are suspended from running (tolling)." *R.R. v. New Life Community Church of CMA, Inc.*, 303 So. 3d 916, 918 (Fla. 2020). Courts must interpret statutes "according to their plain and obvious meaning." *D.H. v. Adept Comm., Inc.* 271 So. 3d 870, 877 (Fla. 2018). Courts may not "go beyond the statutory framework and adopt a special, judge-made rule" governing the

accrual (or tolling) of limitations statutes. *New Life*, 303 So. 3d at 918.

That is precisely what the trial court has done in this case in applying the § 95.051(1)(d) "tolling" provision applicable to the "adjudicated incapacity" of the "person entitled to sue" to excuse the "Estate's" failure to serve a mandatory presuit notice of intent within the two-year limitations period. The plain language of the statute permits the tolling of the "limitations" period for the filing of an "action" in the case of a "person" who has been "adjudicated incapacitated." The "Estate" is not a "person" who has been adjudicated incapacitated. The trial court was not authorized under the plain language of the statute to apply the § 95.051(1)(d) tolling provision to excuse the "Estate's" failure to timely comply with mandatory presuit notice requirements.

Courts must "faithfully apply the accrual and tolling rules prescribed by the Legislature." *New Life*, 303 So. 3d at 923. The Legislature has prescribed in § 95.051(1)(d) an unambiguous provision for tolling the time for filing an "action" in the case of the "adjudicated incapacity" of the "person entitled to sue." The

"statutory framework leaves no room for supplemental common law [tolling] rules." *New Life*, 303 So. 3d at 923. Where a "statute purports to provide a comprehensive treatment of the issue it addresses" — as in this case — "judicial law making is implicitly excluded." *Id.* (citation omitted). The trial court's application of § 95.051(1)(d) to "toll" the time for the "Estate's" service of a presuit notice of intent "transcends the judicial function" and is a departure from the essential requirements of Florida law. *Id.*

### C. Section 95.051 Applies to "Limitations Of Actions" — Not Presuit Notices.

The trial court not only misapplied the plain language of the § 95.051(1)(d) by applying its tolling provision to the Estate, but also misconstrued that the statute applies to the tolling of the time to file an "action," not a presuit notice of intent. Chapter 95 expressly applies to "Limitations of Actions," and § 95.051(1)(d) therefore tolls the time for filing an "action" in the case of the "adjudicated incapacity" of the "person entitled to sue." **The statute says nothing about tolling the time for filing a presuit notice of intent.**

Presuit notice procedures serve a "legitimate legislative policy" and are "more than mere technicalities." *See, e.g., Largie v. Gregorian,*

*M.D.*, 913 So. 2d 635, 638 (Fla. 3d DCA 2005). There is a clear difference between a deadline for filing an action and for serving a mandatory presuit notice. *See, e.g., Fagan v. Jackson County Hosp. Dist.*, 379 So. 3d 1213, 1214 (Fla. 1st DCA 2024).

In *Zequeira v. MMPB Group, LLC*, 400 So. 3d 656 (Fla. 3d DCA 2024), for example, the Third District discussed the distinction between the tolling of the statute of limitations to bring a lawsuit as compared to the filing of a presuit notice. *Zequeira*, 400 So. 3d at 657 ("while the pendency of a class-action complaint may toll the statute of limitations for unnamed putative class members seeking . . . to file their claims, it does not toll the requirement for a named plaintiff . . . from complying with a condition precedent to filing suit."). The court in *Zequeira* acknowledged the "well-established" rule that the "failure to comply with a statutory condition precedent to litigation is grounds for dismissal." *Id.* at 658. On appeal from the dismissal of the plaintiff's complaint for failure to serve a presuit notice of intent prior to the filing of the complaint, the *Zequeira* court focused on the "interplay" between tolling principles applicable to the filing of

individual lawsuits and the "requirement of presuit notice." *Id.* at 659.

The *Zequeria* court noted that the principle for the "tolling of a statute of limitations to file suit" does not apply "to toll a presuit notice requirement" because "presuit notice serves an entirely different purpose." *Id.* Specifically, the "presuit notice requirement exists to encourage possible settlement and resolution prior to, and ideally without, litigation." *Id.* In this regard, the *Zequeira* court noted that, to apply the "tolling of the statute of limitations for bringing an individual lawsuit" to "equally toll a presuit notice requirement" would render the presuit notice statute "effectively meaningless." *Id.* at 661.

Turning to Florida Supreme Court authority in support, the *Zequeira* court explained that "presuit notice and screening requirements . . . represent more than mere technicalities," and that to suggest that the "requirements of the statute may be easily circumvented would be to thwart legislative will." *Id.* at 661 (citing *Ingersoll v. Hoffman*, 589 So. 2d 223, 224 (Fla. 1991)). The *Zequeira* court concluded that "to allow the statute's presuit notice

requirement" to be circumvented by the filing of a lawsuit would create an "absurd result unsupported by any rational reading of the statutory language" and would "make a mockery of the statutory scheme and the plain language requiring a plaintiff to notify a defendant and provide an opportunity for resolution **prior to filing a lawsuit**." *Id.* (emphasis added).

The *Zequeira* court's analysis applies equally in this case. Specifically, the Legislature's determination in § 95.051(1)(d) that the "adjudicated incapacity" of the "person entitled to sue" warrants tolling of the statute of limitations for filing an action makes perfect sense. If "the person entitled to sue" has been adjudicated incompetent and is unable to file a lawsuit, it is reasonable for the limitations period to be extended to allow a proper party to file suit on that party's behalf. However, the trial court's order extending the § 95.051(1)(d) tolling provision to excuse the Estate's failure to timely serve a mandatory presuit notice misapplies the language and intent of the tolling statute, and "makes a mockery" of the presuit statutory scheme.

The trial court not only overlooked that § 95.051(1)(d) does not toll the time for serving a presuit notice, but also that the statute was not legitimately triggered, and that Ms. Padykula's "adjudicated incapacity" was therefore irrelevant, because the "action" was timely filed before the expiration of the two-year statute of limitations. As the trial court overlooked, Plaintiff misused the statute as an excuse for his admitted failure to serve a mandatory presuit notice of intent within the two-year statute of limitations period — not to excuse any failure on the part of "Ms. Padykula" to file an "action" within two-years. Plaintiff has cited no authority excusing his failure to serve a presuit notice of intent within the statutory limitations period, because none exists. The trial court plainly departed from the essential requirements of Florida law when it applied the § 95.051(1)(d) tolling provision applicable to "limitations of actions" to Plaintiff's failure to comply with mandatory presuit notice requirements.

### D. The Trial Court's Order Rewards Plaintiff's Delay In Opening An Estate.

The trial court's determination that the § 95.051(1)(d) tolling provision applicable to the "adjudicated incapacity" of the "person

entitled to sue" applies equally to "the Estate" is not only contrary to the plain language and intent of the tolling and presuit notice statutes, but rewards Plaintiff's delay in opening an Estate and securing an appointment as Personal Representative. Section 429.296(1) establishes a two-year statute of limitations for filing a lawsuit against an ALF, running from the time the "incident giving rise to the action occurred or within two-years from the time the incident is discovered or should have been discovered with the exercise of due diligence." Section 429.293(2), in turn, mandates service of a presuit notice prior to the expiration of that limitations period. And because a wrongful death action can only be filed by the Personal Representative of a decedent, it necessarily follows that a party seeking to sue for wrongful death must open an Estate and secure an appointment as Personal Representative before the two-year statute of limitations has expired. *See, e.g.*, *Coley*, 500 So. 2d at 189 (acknowledging sanction of dismissal when estate is not opened within limitations period).

Plaintiff admitted in his August 23, 2024 Motion to Stay — which he filed over a month after the expiration of the statute of

limitations — that he had only recently "petitioned the probate court in Palm Beach County to be designated personal representative of Ms. Padykula's Estate." (A. 97.) Plaintiff was not appointed Personal Representative of the Estate until September 9, 2024 — two months after the expiration of the statute of limitations. (A. 36.) This delay alone was grounds for dismissal. *See, e.g., Philip Morris USA Inc. v Freeman*, 285 So. 3d 999, 1001 (Fla. 1st DCA 2019) (wrongful death lawsuit filed by one other than the personal representative is a legal nullity); *Nieves v. Senior Health TNF, LLC*, 369 So. 3d 760, 764 (Fla. 2d DCA 2023) (lawsuit correctly dismissed where plaintiff was not personal representative when the lawsuit was filed); *Benson v. Benson*, 533 So. 2d 889 (Fla. 3d DCA 1988) (affirming dismissal of decedent's parents' wrongful death action for lack of standing where parents were not personal representatives of their daughter's estate).

Plaintiff concedes he "could have opened an Estate earlier" but flippantly asserts he was under no "legal obligation to do so." (A. 39.) However, it is irrefutable that someone was under a legal obligation to open an Estate before filing a wrongful death action arising out of Mr. Padykula's death, given that wrongful death actions must be filed

by Personal Representatives of the Estate. And in order to comply with statutory limitations and presuit notice requirements, that Estate needed to be opened within two-years of Mr. Padykula's death. It was not.

The trial court's application of § 95.051(1)(d) to excuse Plaintiff's failure to serve a presuit notice of intent within the two-year statute of limitations is therefore a departure from the essential requirements of Florida law for the additional reason that it rewards Plaintiff's delay in opening an Estate and securing an appointment as Personal Representative. It also incentivizes other litigants to do the same. The trial court departed from the essential requirements of Florida law by creating an open-ended period of time for opening an Estate, securing an appointment as Personal Representative, serving a presuit notice of intent, and filing a wrongful death action — notwithstanding mandatory statutory deadlines for doing so.

These very statutory violations, in fact, are what enabled Plaintiff to avoid summary judgment. Specifically, if Plaintiff had timely opened an Estate and timely secured an appointment as Personal Representative, and had properly brought the action in his

capacity as Personal Presentative and not as Ms. Padykula's "Guardian," he would not have been able to **boot-strap** the § 95.051(1)(d) tolling provision purportedly applicable to Ms. Padykula's "adjudicated incapacity" to escape the Estate's failure to timely serve a mandatory presuit notice of intent. When Plaintiff's failure to timely serve a presuit notice was challenged, Plaintiff invoked § 95.051(1)(d) as Ms. Padykula's "Guardian" in order to take advantage of the tolling provision purportedly applicable to her "adjudicated incapacity." Ms. Padykula, however, is not and has never been the Personal Representative of her late husband's Estate. Therefore, permitting Plaintiff as representative of the Estate to invoke a statutory tolling provision applicable to his mother — who is not the Personal Representative and therefore not the "person entitled to sue" — rewards Plaintiff for his delay in opening the Estate and in securing an appointment as Mr. Padykula's Personal Representative.

In short, the trial court not only departed from the essential requirements of Florida law by applying the § 95.051(1)(d) tolling provision applicable to the "adjudicated incapacity" of the "person

entitled to sue" to excuse the "Estate's" failure to timely serve a mandatory presuit notice, but also by sanctioning Plaintiff's delay in opening an Estate and securing an appointment as Personal Representative. There is no way to cure these statutory infractions on plenary appeal. The trial court's order, therefore, should be quashed.

## CONCLUSION

For the reasons set forth herein, Defendants respectfully request that the Court quash the trial court's April 17, 2025 order denying their motion for summary judgment and require the court to enter judgment in Defendants' favor based on Plaintiff's failure to serve a presuit notice of intent within the two-year statute of limitations.

Respectfully submitted,

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*Counsel for Petitioners*

**CERTIFICATE OF SERVICE**

**I HEREBY CERTIFY** that on May 16, 2025, I electronically filed the foregoing with the Clerk of the Court using eFilings through the Florida Courts ePortal System and furnished via email to the following:

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s/ Marie A. Borland
Attorney

**I FURTHER HEREBY CERTIFY** that on May 16, 2025, I provided a copy of the foregoing by email to the Honorable Jaimie R. Goodman at CAD-DivisionAD@pbcgov.org.

s/ Marie A. Borland
Attorney

## CERTIFICATE OF COMPLIANCE

**I HEREBY CERTIFY** that the foregoing petition complies with the font requirements of Rule 9.045(b), as a computer-generated document drafted in Microsoft Word 2016 using Bookman Old 14-point font.

**I FURTHER CERTIFY** that the petition complies with the word limit of Rule 9.100(g). Using Microsoft Word's word count function, this petition contains 4,978 words, excluding those portions of the petition excluded from the word count.

s/ Marie A. Borland
Attorney